

**COMPLAINT NOS. 1061-09-0007, 1061-09-0051,
1061-10-0020, and 1061-10-0064**

IN THE MATTER OF

JONATHON KENNETH PAUGH

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF
PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to its authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(d), the Texas State Board of Examiners of Professional Counselors ("Board") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Texas Behavioral Health Executive Council ("Council"), which have been approved and accepted by **Jonathon Kenneth Paugh** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor (#11228) in the State of Texas and is, therefore, subject to the jurisdiction of the Council.
2. From approximately January of 2006 to January of 2007, Respondent engaged in a prohibited non-therapeutic relationship and a sexual relationship with a client.
3. From approximately June of 2008 to August of 2008, Respondent failed to release records requested by client.
4. In approximately October of 2009, Respondent failed to take reasonable precautions to protect a client from emotional harm.
5. Over the past 12 years since these violations Respondent has implemented remedial measures, accepted responsibility for Respondent's actions, and satisfactorily demonstrated Respondent's rehabilitative potential to the Board.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.

2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 Texas Administrative Code §§681.41 and 681.42.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent's license is SUSPENDED for a period of ten (10) years retroactive from the effective date of this order to November 12, 2011. However, the ten (10) years of retroactive suspension shall be PROBATED, also retroactive from the effective date of this order to November 12, 2011.

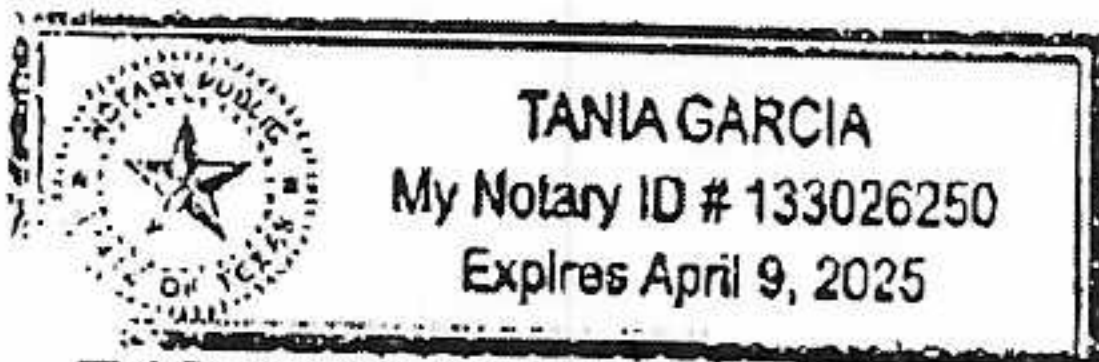
WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

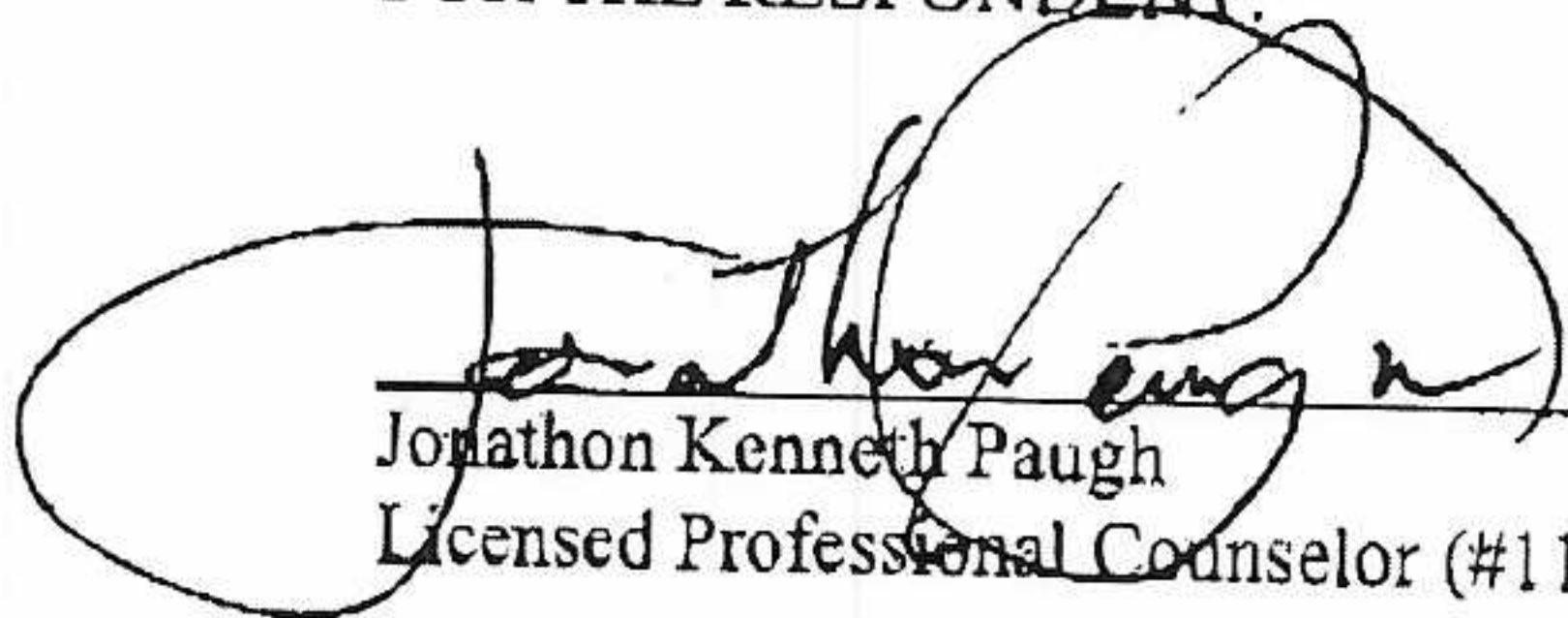
WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

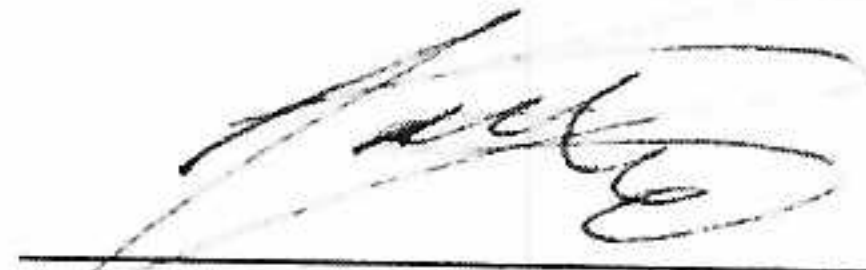
THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.



FOR THE RESPONDENT:


Jonathon Kenneth Paugh
Licensed Professional Counselor (#11228)

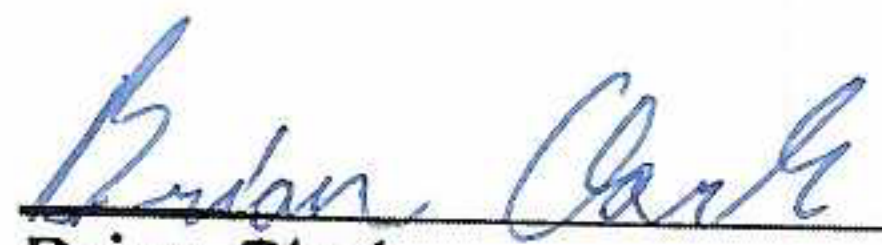
DATE SIGNED: 10-19-21


Louis Leichter
Texas Bar No. 24000243
Counsel for Respondent

DATE SIGNED: 10-19-21

APPROVED, RATIFIED, AND ENTERED THIS 12TH DAY OF NOVEMBER, 2021.

FOR THE STAFF OF THE COUNCIL:


Brian Clark
Texas Bar No. 24099457
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 10-21-21


Steven Hallbauer
Chair, Texas State Board of Examiners of
Professional Counselors